



ASSOCIATE JUSTICE
SUPREME COURT OF LIBERIA



JUDICIAL BRANCH
TEMPLE OF JUSTICE
MONROVIA, LIBERIA

IN THE HONOURABLE SUPREME COURT OF THE REPUBLIC OF LIBERIA
SITTING IN ITS OCTOBER TERM, A.D. 2021

BEFORE HIS HONOR: FRANCIS S. KORKPOR, SR.....CHIEF JUSTICE
BEFORE HER HONOR: JAMESETTA H. WOLOKOLIE.....ASSOCIATE JUSTICE
BEFORE HER HONOR: SIE-A-NYENE G. YUOH.....ASSOCIATE JUSTICE
BEFORE HIS HONOR: JOSEPH N. NAGBE.....ASSOCIATE JUSTICE
BEFORE HIS HONOR: YUSSIF D. KABA.....ASSOCIATE JUSTICE

Republic of Liberia by and thru the Ministry of)
Justice.....Appellant)

Versus)

APPEAL)

His Honor Ousman Feika, Assigned Circuit)
Judge, 2nd Judicial Circuit, Grand Bassa County)
and Bobby Dorbor.....Appellees)

GROWING OUT OF THE CASE:)

Republic of Liberia by and thru the Ministry of)
Justice.....Petitioner)

Versus)

PETITION FOR A WRIT OF)
CERTIORARI)

His Honor Ousman Feika, Assigned Circuit)
Judge, 2nd Judicial Circuit, Grand Bassa County)
and Bobby Dorbor.....Respondents)

GROWING OUT OF THE CASE:)

Republic of Liberia by and thru the Ministry of)
Justice.....Plaintiff)

Versus	)	CRIME: THEFT OF
	)	<u>PROPERTY</u>
Bobby Dorbor.....Defendant	)	

JUDGMENT WITHOUT OPINION

When this case was called for hearing, Counsellor Bobby Livingstone of the Ministry of Justice appeared for the appellant. Counsellor Eugene L. Massaquoi of the Jalah Law Firm appeared for the appellees.

This is an appeal from the ruling of our Distinguished Colleague presiding in the Chambers of this Court during the March Term, A. D. 2019, wherein he denied and dismissed the appellant's petition for a writ of certiorari on grounds that the ruling of the respondent judge, His Honor Ousman F. Feika, entered on December 18, 2020, dismissing the appellant's complaint was final and not interlocutory; therefore certiorari will not lie.

At the call of the case, the counsel for the appellant made a submission on the minutes of this Court as follows:

"At this stage, counsel for the appellant respectfully requests to inform Your Honors that the appeal announced earlier was withdrawn, but same was not reflected and the matter travelled to the Full Bench of the Supreme Court. By this submission, the counsel announces that it is no longer pursuing this matter for appellate review. And respectfully submits"

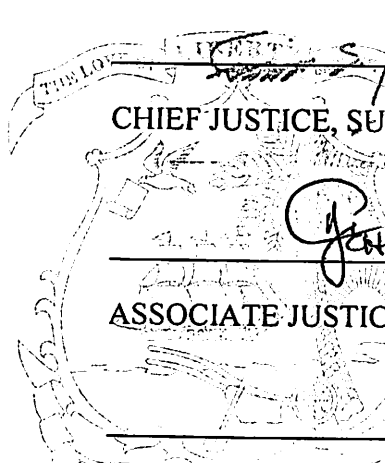
In response to the foregoing appellant's submission, the counsel for the appellees interposed no objection.

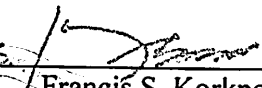
In view of the foregoing, it is hereby

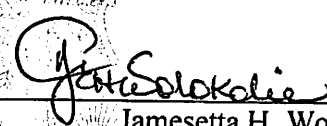
ADJUDGED:

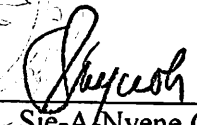
That the submission of the appellant's counsel to withdraw its appeal is hereby granted and the appeal is ordered stricken from the Docket of this Court. The Clerk of this Court is ordered to send a mandate to the court below to resume jurisdiction over this case and enforce its final ruling. AND IT IS SO ORDERED.

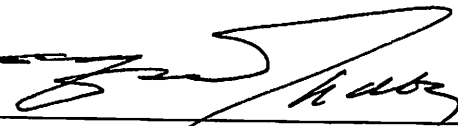
GIVEN UNDER OUR HANDS AND SEAL OF THE
SUPREME COURT OF LIBERIA THIS 1ST DAY OF
FEBRUARY, A.D. 2022.




Francis S. Korkpor, Sr.
CHIEF JUSTICE, SUPREME COURT OF LIBERIA


Jamesetta H. Wolokolie
ASSOCIATE JUSTICE, SUPREME COURT OF LIBERIA


Sie-A Nyene G. Yuoh
ASSOCIATE JUSTICE, SUPREME COURT OF LIBERIA


Yussif D. Kaba
ASSOCIATE JUSTICE, SUPREME COURT OF LIBERIA

Note: This appeal having emanated from the ruling of Mr. Justice Joseph N. Nagbe, he did not participate in the hearing and determination of this case; hence, he did not sign this Judgment.